Summary

I make this statement in support of my Contempt Application dated 18 October 2024. I set forth the defendant's acts which I allege constitute contempt and will provide evidence, which is credible, reliable, and sufficient to prove contempt to the criminal standard. The defendant's conduct has rendered it impossible to hold a fair trial. He set out to use the court process as an instrument of fraud and has resorted to forgery, perjury and the suppression of evidence in order to prevent the court from finding out the truth. He is determined to subvert the adjudicative process by fraudulent means and is abusing the judiciary process.

The defendant's destructive litigation strategy aims to deflect from his substantial non-disclosure of assets and his illicit activities. To that end, the children and I have been subjected to extreme economic abuse and coercion. Our daughters are 17 and 19-years old, and both are under my care. We have been homeless since February 2024, and we do not financial resources for food, groceries, and basic needs. The defendant maintains sole ownership and control over our joint matrimonial assets and liquidity and is abusing his position.

I am a litigant in person and intend to bring to justice the defendant's acts of perjury, fraud, and contempt of court. I am seeking a fair, public, and impartial trial.

The principal issues to consider are (1) how serious is the conduct (i.e. what was, or could have been, the impact on the administration of justice?); (2) what is the culpability of the defendant (his knowledge and involvement, was the action premeditated, was there a motivation, has the conduct been repeated?); (3) whether the defendant's actions were or created a risk of an interference with the administration of justice that was sufficiently serious to amount to criminal contempt; and (4) whether the respondent had a specific intention to interfere with the administration of justice.

In terms of harm, as a result of the defendant's conduct the outcome of the proceedings was unfair and the case is still in the courts. This was as the respondent intended. I suffered substantial harm as a result of these actions. The defendant's conduct undermines the public's trust in the judiciary system. The defendant was motivated by his personal gain and his lack of remorse, moral, and decency. The defendant committed fraud by false representation. He dishonestly made a false representation and intended, by making the representation, to make a gain for himself or another, or to cause loss to another, or to expose another to a risk of loss.

In terms of culpability, the defendant was responsible for his sworn statement of assets ES2 dated 19 February 2024 which he filed with the court as evidence for the trial. Likewise, the defendant was responsible for the submissions and the evidence before the trial judge, whether in writing or in oral submissions. He directed his counsel to make statements which were untrue on three occasions: (i) in her opening statement on behalf of the defendant on 19th February 2024, (ii) in her oral submissions of 26th February 2024, and (iii) in her closing submissions of 28th February 2024. The defendant knew these representations to be false, untrue or misleading at the time when he made them or directed his counsel to make them. He was in no doubt that his conduct amounted to contempt, and he directed his solicitors to ignore my emails of 29th February 2024, 4th and 6th March 2024 requesting an explanation regarding the false representation.

The defendant was a director on the board of Oxus Acquisition Corp. He was on the Audit Committee, the Compensation Committee, and the Nominating Committee. He executed all the SEC forms and had a duty to comply with the SEC disclosure requirements of Regulation S-K Title 17, Part 229.103.

Between June 2021 and February 2024, he signed all the Registration Statements on Form S-4 filed with the SEC. The defendant had knowledge of all matters related to the Oxus SPAC transaction and this is evidenced in the SEC filing which are available via the Edgar website.

https://www.sec.gov/edgar/browse/?CIK=1852973&owner=exclude

Perjury Act 1911

The Perjury Act 1911 states that perjury occurs "***If any person lawfully sworn as a witness or as an interpreter in a judicial proceeding willfully makes a statement material in that proceeding, which he knows to be false or does not believe to be true***." In his sworn financial statement on Form ES2 dated 19 February 2024, and in his witness evidence at the trial the defendant represented that the value of his Oxus shares was $0. At the time he made these representations under oath he knew them to be false and he knowingly committed perjury with the intention of making a financial gain for himself and causing me a financial loss. He withheld **material information** from the court, failing to disclose that the performance condition for his stock-based compensation had been met eleven days prior to the start of trial and that his Founders Shares had a market value of $500,000.

What is a SPAC?

SPACs are shell companies organized and managed by a sponsor for the purpose of merging with or acquiring one or more unidentified private operating companies, commonly known as a de-SPAC transaction, within a certain time frame. The de-SPAC transaction is a hybrid transaction that contains elements of both an initial public offering ("IPO") and a merger and acquisition ("M&A") transaction. While structured as an M&A transaction, the de-SPAC transaction also is the functional equivalent of the private target company's IPO, because it results in the target company becoming part of a combined company that is a reporting company and provides the private target company with access to cash proceeds that the SPAC had previously raised from the public. As part of this process, the shareholders of the SPAC go from owning shares in a shell company to owning shares in a combined company that conducts the business of the private target.

Once formed, a SPAC will conduct its IPO in the form of a firm commitment underwritten IPO of $5 million or more in units consisting of redeemable shares and of warrants. The underwriting fees for a SPAC IPO typically approximate 5% to 5.5% of the offering proceeds, and a significant portion of those fees (around 3% of the IPO proceeds) are conditioned on the completion of a de-SPAC transaction. The SPAC sponsor is usually compensated through a "promote" or "founder's shares"—i.e., discounted SPAC shares received prior to the SPAC's IPO that generally only have value if a de-SPAC transaction occurs.

Following its IPO, a SPAC places all or substantially all of the IPO proceeds into a trust or escrow account. The SPAC typically registers its shares and warrants under section 12(b) of the Securities Exchange Act of 1934 ("Exchange Act") and lists the units (typically consisting of a common share and a fraction of a warrant) for trading on a national securities exchange.

Next, the SPAC seeks to identify a target company for a de-SPAC transaction within the time frame specified in its governing documents. If the SPAC does not complete a de-SPAC transaction within that time frame, it may seek an extension (often requiring approval from its shareholders) or dissolve and liquidate. If the SPAC enters into a business combination agreement with a target company, the SPAC files a Form 8-K announcing the transaction that includes certain information on the material terms of the business combination agreement.

Directors' Founders Shares

The following paragraph is an excerpt the Proxy Statement and Prospectus Oxus SPAC filed with the SEC on 16 January 2024. It states that the value of the respondent's beneficial ownership in Oxus is approximately $565,000 ($1,695,000/3).

"The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately $1,695,000 based on the closing price of Class A Shares of $11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares" (**exhibit NZ1 p. 65**).

As of 18 October 2024, the SEC filings show the defendant's position remains 50,000 shares. He has not disclosed his ownership of warrants, which trade separately on Nasdaq under the ticker symbol BRLSW.

Timeline of the Oxus De-SPAC

31st May 2022	**SEC Form 8-K Current Report Oxus Acquisition Corp. (exhibit NZ1 p. 8)** "On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, Mr. Karim Zahmoul was appointed as independent director. On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to Mr. Karim Zahmoul on June 7, 2022, was $0.02 million or $0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model. Stock-based compensation would be recognized at the date the performance conditions are met (i.e. upon consummation of a Business Combination)"**.**
3rd June 2022	**Form 8-K Exhibit 24.1** (**exhibit NZ1 p. 12**) The defendant causes a Power of Attorney to be executed. As such, he had knowledge of his appointment and the transfer of shares on 3 June 2022. This is not consistent with the representation made by his solicitors on 6 June 2022.
6th June 2022	**Correspondence from defendant's solicitors** (**exhibit NZ1 p. 15**) "My client has been offered a directorship role in a SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this, but they will be provided once executed. My client will not receive income from the role, but **he may receive shares in the company** subject to its performance – full details are yet to be finalized but will be confirmed when they are."
7th June 2022	**SEC Form 3 "Initial Statement of Beneficial Ownership of Securities"** (**exhibit NZ1 p. 14**) Mr. Zahmoul received 50,000 Class B ordinary shares. This was announced on 31 May 2024 on Form 8-K. The Founders shares were granted on 7th June 2022 and recorded on 9th June 2022 on Form 3 "Initial Statement of Beneficial Ownership of Securities". Form 3 states as follows: "The shares of Class B ordinary shares have no expiration date and **will automatically convert into shares of Class A ordinary shares at the time of the Issuer's initial business combination,** or earlier at the option of the holder, on a one-for-one basis, subject to adjustment as set forth in the Issuer's registration statement on Form S-1 (File No. 333-258183)."
14th August 2023	**Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 39)** The defendant signs the Registration Statement in his capacity as a director.
23rd October 2023	**Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 42)** The defendant signs the Registration Statement in his capacity as a director.
13th Nov 2023	**Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 46)** The defendant signs the Registration Statement in his capacity as a director.

22nd Dec 2023	Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 50) **The defendant signs the Registration Statement in his capacity as a director.**
5th Jan 2024	Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 55) **The defendant signs the Registration Statement in his capacity as a director.**
11th Jan 2024	**Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 60)** The defendant signs the Registration Statement in his capacity as a director.
16th Jan 2024	**Proxy Statement and Prospectus (exhibit NZ1 p. 70)** The defendant's beneficial ownership of Oxus shares is 50,000 as of 11 January 2024.
6th Feb 2024	**Form 8-K Exhibit 3.1 Certificate of Continuance (exhibit NZ1 p. 77)** The Board approved the Continuance (as defined in the Proxy Statement), and the adoption of the articles and by-laws of New Borealis (as defined in the Proxy Statement) in substantially the form attached to the Proxy Statement as Annex I for purposes of the articles and by-laws of New Borealis following the completion of the Continuance. The defendant's signature appears in p. 77 of the Certificate of Continuance.
7TH Feb 2024	**Form 8-K filed on 13 Feb 2024 reports the closing of the Business Combination**. Borealis, Oxus, and Newco, consummated the Transaction, following the approval at the Extraordinary General Meeting. As set forth in the Securities and Exchange Commission (SEC) S-4 Registration Statements signed by the defendant, the closing of the Business Combination on 7th February 2024 is a **material event because it triggers the Performance Condition for the Founders Shares which were granted subject to the closing of the Business Combination transaction.**
8th Feb 2024	**SEC Form 8-K Exhibit 99.1** stated that following the Business Combination of 7 February 2024 Borealis would start trading on Nasdaq on 8 February 2024 under the ticker symbol BRLS. Eleven days before the U.K. trial began, Oxus SPAC completed its business combination, and the new shares began trading on Nasdaq. On 8 February 2024 at 4:45pm EST, Rakishev posted a photograph on his Instagram account featuring the defendant, three associates, and himself at the Nasdaq exchange in New York's Times Square. The time stamp is visible on the picture.

Kenes Rakeshev (second from right) and Mr. Zahmoul (second from left) outside Nasdaq on 8th February 2024 when Oxus/Borealis was launched (BRLS).

Timeline of perjuries and false statements

18th to 28th Feb 2024	**Perjury in Sworn Statement of Assets on Form ES2 (exhibit NZ1 p. 91)** The trial started on 19 February 2024 at the Royal Courts of Justice, High Court. The defendant filed his sworn statement of assets on Form ES2 dated 19 February 2024. He reported a fair value of $0 for the Oxus shares. **On that day, the market value of the shares shares was $500,000 as per Nasdaq closing price.**
19th Feb 2024	**Counsel Note on Behalf of the Respondent Husband (exhibit NZ2 p. 111)** Para. 24. "During these proceedings, H has continued to invest and has channeled some of these projects through EMVirya Ltd a company in which he is an 80% shareholder. The company does nothing other than receive fees. H has also taken on work as a non-executive director for Oxus Acquisition Corp. He is not paid a salary but has been awarded founder shares for his input **[4335]**. **He is hopeful that those shares will in time have value to reflect his input.** Otherwise, H plans, subject to liquidity pressures, to carry on as a niche private investor seeking out profitable returns in the future". **This is a false statement**. On 19 February 2024 the shares's market value was approximately $500,000.
22nd Feb 2024	**Witness Evidence** The defendant was lawfully sworn as a witness in the U.K. trial. He wilfully made false statements which he knew to be false and did not believe to be true; and which were material in the proceedings. He falsely stated in his witness evidence to the Court that the value of the Oxus shares was $0.
27th Feb 2024	**Counsel Oral Submissions on Behalf of Respondent Husband (exhibit NZ2 p. 93)** In her closing submissions on behalf of the defendant Ms Campbell KC asserted: "Oxus, Karim Zahmoul was assisting on an advisory basis. **He has some shares; they are of no value**". This was a false statement. On that day, the market value of the Oxus shares was $500,000, as per Nasdaq trading prices.
28th Feb 2024	**Counsel Closing Submissions on Behalf of the Respondent Husband (exhibit NZ2 p. 170)** **Income resources – s.25(2)(a)** "25. H has not been in banking since 2014. Those days of high income awards have long passed. He worked for a renewable energy development project between 2014 and 2017. The income earned in those years has been calculated by his accountant at **[2229]**. These are modest sums. The work did not last. Between 2018 and 2020 H worked for Sphere Digital in Morocco. He had to go overseas to get that job, which ended in litigation. H attempted to use his consultancy skills to generate income through EMVirya Ltd, but this has not been successful, and the business has not made sufficient income to draw a salary or profit. He no longer works as a director of Oxus (a role he lost when the business merged with Borealis) but did not earn any income and was only reimbursed business related expenses, **[s.25 statement paragraph 30]**."

28th February 2024

Immediately after the conclusion of the trial, I checked my SEC notifications and realized that the business combination had closed on 7 February 2024, and that the defendant had committed perjury at the trial. I met with my barrister, Brent Molyneux KC, on the same day. He read the information and confirmed that the defendant had committed a perjury and that this constituted material information which should be communicated to the judge as soon as possible.

29th February 2024

First email to defendant's solicitors.

My solicitors sent the following email to the defendant's legal team **(exhibit NZ1 p. 95**)

"*Dear Valeria, we attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post-merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of $9.20 (and your client had 50,000 shares in the pre-merger OXUS)* ***please can you explain the value of his stockholding with reference to the attached documents and any others in your client's possession – and why he ascribed a nil value to his equity in the ES2****. We look forward to hearing from you. Kind regards, Faye*".

We sent two follow-on emails on 4 March 2024 at 12:46, and 6 March 2024 at 2:28 (**exhibit NZ1 p. 99 and 102**) but the defendant's team did not reply. At that stage, my counsel, Mr. Molyneux KC advised me to write to the judge, which I did on 6th and 7thMarch 2024.

6th March 2024

On 6 March 2024 I became a litigant in person due to lack of funding. I informed the judge that the Business Combination transaction occurred on 7 February 2024 and the Performance Condition had been met. I stated that the new company shares had started trading on Nasdaq on 8 February 2024, providing full visibility on the market value of the defendant's shares. I attached documentary evidence of the defendant's knowledge and his involvement in the entire lifecycle of the SPAC and De-SPAC transactions, consistent with his duties as an independent director of Oxus SPAC. The evidence is in exhibits NZ1 and NZ2 and consists primarily of SEC filings which are available through Edgar.com, the filing platform of the SEC. My email to the judge and enclosures are in **exhibit NZ1 p. 101 through 122**.

7th March 2024

As I was a litigant in person and did not have legal advice, I wasn't sure of the procedure. I prepared a comprehensive statement on Form D-11 setting forth the events and the evidence and filed it with the Court on 7 March 2024. I included a timeline of the SEC filings for the period from 2021 to 2024, and excerpts from the Proxy Statement and Prospectus Oxus of 16 January 2024.

The table below shows the actual beneficial ownership of Oxus Shares as of September 30, 2023, and pro forma information regarding the beneficial ownership of New Borealis Common Shares on the date of the Closing. Oxus believes that all persons named in the table have sole voting and investment power with respect to all shares beneficially owned by them. The following table does not reflect record or beneficial ownership of Oxus' warrants because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus. The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of **January 11, 2024**. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Fig 1: Beneficial ownership: Directors, Executive Officers and Sponsor of Oxus (page 287)

	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
Name and Address of Beneficial Owner[1]	**Number**	**Percentage**	**Number**	**Percentage**	**Number**	**Percentage**
Askar Mametov[11]	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500[4)(5)]	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531[8)(9)]	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719[10)]	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*
Kanat Mynzhanov	—	—	200,000	*	200,000	*
Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov[12]	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						

Source: SEC Filing S-4, 11th January 2024

Statement of truth

I understand that the proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

I believe that the facts stated in this witness statement are true

Signed

Nadia Zahmoul

Nadia Zahmoul
this 18th Day of October 2024